

Court No. - 27

Case :- U/S 482/378/407 No. - 2865 of 2021

Applicant :- Krishna Chandra Mishra

Opposite Party :- State Of U.P. & Anr.

Counsel for Applicant :- Vipin Kumar Mishra, Suneel Kumar Mishra

Counsel for Opposite Party :- G.A., Amit Kumar Dwivedi

Hon'ble Karunesh Singh Pawar, J.

As prayed by learned counsel for the petitioner, put up this case on 06.09.2021 as fresh.

Order Date :- 2.9.2021

R.C.

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Hon'ble Karunesh Singh Pawar, J.

Heard learned counsel for the petitioner and learned A.G.A. as well as Shri Amit Kumar Dwivedi, learned counsel for respondent no. 2.

Learned counsel for the petitioner submits that earlier he filed a 482 petition No. 807/2021 "Krishna Chandra Mishra vs. State of U.P. and another" which was disposed of vide order dated 19.02.2021 with liberty to the petitioner to move an application for compounding offence through his counsel within a period of ten days from the order dated 19.02.2021. The order dated 19.02.2021 is on record as Annexure No. 7 to the petition.

It is contended on behalf of the petitioner that offence under Section 135 (1)(a) of the Indian Electricity Act is a compoundable offence, therefore, in compliance of the order passed by this Court he has moved an application before the concerned Court specifically stating in para 3 that he has deposited the compounding fee i.e. Rs. 4000/- and receipt of that amount is also on record, however, still non-bailable warrants have been issued against the petitioner although he has deposited the compounding fee.

It is thus contended that the criminal proceedings of alleged theft under Section 135 of Indian Electricity Act, 2003 cannot continue as the criminal offence has been compounded by the Electricity Department. The receipt of the electricity department is also on record.

In view of the provision contained in Section 152(1) of the Electricity Act, 2003, the criminal offence of theft of electricity being the first offence had been compounded by the department and hence, the proceedings of theft of electricity under Section 135 of the Electricity Act, 2003 cannot continue. The department shall be at liberty to make assessment for the unauthorized use of electricity by the petitioner in a civil proceeding strictly in accordance with the provision of the U.P. Electricity Supply Code, 2005.

Thus, proceedings in this case appears to have been initiated by

the Court in ignorance of the fact that the compounding fee has already been deposited by the petitioner before the electricity department, hence, the charge sheet No. 01.2018 dated 22.07.2018, as well as the impugned non-bailable warranted dated 26.08.2021 and the entire proceedings of case crime No. 176/2018, under Sections 135(1)(a) of the Indian Electricity Act, Police Station Chhapiya, District Gonda pending before the Special Judge, E.C. Act, Room No. 4, Gonda are hereby quashed.

The petition is allowed.

Order Date :- 6.9.2021
R.C.